

CHAPTER 4.

An Act to extend the privileges of the graduates of the University of Sheffield. [31st July 1914.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Extension of
privileges of
graduates of
Sheffield
University

1. Wherever any office is or shall be open to graduates of the Universities of Oxford, Cambridge, and London, the Victoria University of Manchester, the University of Liverpool, and the University of Leeds, or wherever any privilege or exemption has been or shall be given by any Act of Parliament or regulation of any public authority to graduates of the Universities of Oxford, Cambridge, and London, the Victoria University of Manchester, the University of Liverpool, and the University of Leeds, graduates of the University of Sheffield, having the degree which would be a qualification if it had been granted by the University of Oxford, Cambridge, or London, the Victoria University of Manchester, the University of Liverpool, or the University of Leeds, may become candidates for and may hold any such office, and shall be entitled to all such privileges, as fully as graduates of any of the last-mentioned universities.

Short title

2. This Act may be cited as the Sheffield University Act, 1914.

CHAPTER 5.

An Act to amend the Ecclesiastical Commissioners (Superannuation) Act, 1865, and the Queen Anne's Bounty (Superannuation) Act, 1870. [31st July 1914.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Superannua-
tion allow-
ances and
additional
allowances to
future officers
and clerks

1.—(1) The proportion of the annual salary and emoluments on which the scale of the superannuation allowances to be granted to officers and clerks of the Ecclesiastical Commissioners and the Governors of the Bounty of Queen Anne is to be calculated shall, in the case of officers and clerks who first enter the service of the Ecclesiastical Commissioners or of the said Governors in an established capacity after the passing of this Act, be one-eightieth instead of one-sixtieth, and accordingly section one of the Ecclesiastical Commissioners (Superannuation) Act, 1865, and section one of the Queen Anne's Bounty (Superannuation) Act, 1870, shall, as respects such officers and clerks,

28 & 29 Vict.
c. 68.
33 & 34 Vict.
c. 89.

have effect respectively as if for the words "sixtieth" and "sixtieths," wherever they occur, there were substituted the words "eightieth" and "eightieths."

(2) The Ecclesiastical Commissioners and the said Governors may grant, by way of additional allowance, to any such officer or clerk who retires after having served for not less than two years, in addition to the superannuation allowance (if any) to which he may become entitled, or the gratuity (if any) which may be granted to him under section two of the Ecclesiastical Commissioners (Superannuation) Act, 1865, or section two of the Queen Anne's Bounty (Superannuation) Act, 1870, a lump sum equal to one-thirtieth of the annual salary and emoluments of his office multiplied by the number of completed years he has served, so, however, that the additional allowance shall in no case exceed one and a half times the amount of such salary and emoluments: Provided that, if any such officer or clerk retires from the service of the Ecclesiastical Commissioners or of the said Governors after attaining the age of sixty-five years, there shall be deducted from the amount of the additional allowance, which would otherwise be payable to him, one-twentieth of that amount for every completed year he has served after attaining that age.

2.—(1) Where any such officer or clerk who enters the service of the Ecclesiastical Commissioners or the said Governors in an established capacity after the passing of this Act dies after he has served five years or upwards whilst still employed in such service, the Ecclesiastical Commissioners or the said Governors, as the case may be, may grant to his legal personal representatives a gratuity equal to the annual salary and emoluments of his office: Provided that, if he dies after attaining the age of sixty-five years, the amount of the gratuity which may be so granted shall be reduced by one-twentieth of that amount for every completed year he has served after attaining that age.

Gratuity in case of death of future officers and clerks.

(2) Where any such officer or clerk, having become entitled to a superannuation allowance, dies after he has retired from the service of the Ecclesiastical Commissioners or the said Governors, and the sums actually received by him at the time of his death on account of such superannuation allowance, together with the sum received by him by way of additional allowance, are less than the amount of the annual salary and emoluments of his office, the Ecclesiastical Commissioners or the said Governors, as the case may be, may grant to his legal personal representatives a gratuity equal to the deficiency.

3.—(1) Subject to regulations to be made by the Ecclesiastical Commissioners and the said Governors respectively they may allow any officer or clerk who has entered their service in an established capacity before the passing of this Act to adopt the provisions of this Act and in such case there may be granted to him or his legal personal representatives

Application to existing officers and clerks.

such superannuation and other allowances and gratuity as might have been granted had he entered their service after the passing of this Act except that the amount of the additional allowance payable on retirement shall be increased by one-half per cent. in respect of each completed year he had served in an established capacity at the passing of this Act.

(2) Nothing in this Act shall affect the right to superannuation allowance or gratuity of any officer or clerk who has entered the service of the Ecclesiastical Commissioners or the said Governors in an established capacity before the passing of this Act and who does not adopt the provisions of this Act.

Reckoning of
service in
temporary
capacity or in
permanent
Civil Service

4. In the case of a person who immediately before the commencement of his service in an established capacity within the meaning of the Ecclesiastical Commissioners (Superannuation) Act, 1865, or the Queen Anne's Bounty (Superannuation) Act, 1870, is serving the Ecclesiastical Commissioners or the said Governors, as the case may be, in a temporary capacity or is serving in an established capacity in the permanent Civil Service of the State, the Ecclesiastical Commissioners or the said Governors may, if in their opinion any special circumstances of the case warrant such a course, direct that his service in that capacity may be reckoned for the purpose of superannuation allowance, additional allowance, or gratuity, and, subject to the approval of the Treasury, it shall be reckoned accordingly.

Superannua-
tion allow-
ances, &c not
to be granted
on advanced
amount of
salary received
for less than
three years.

5. The superannuation allowance, additional allowance, or gratuity to be granted to any officer or clerk of the Ecclesiastical Commissioners after the passing of this Act shall not be computed upon the amount of the salary enjoyed by him at the time of his retirement, unless he shall have been in the receipt of the same or in the class from which he retires for a period of at least three years immediately before the granting of such superannuation allowance, additional allowance, or gratuity, and, in case he shall not have enjoyed his then existing salary or have been in such class for that period, such superannuation allowance, additional allowance, or gratuity shall be calculated upon the average amount of salary received by such officer or clerk for three years next preceding the commencement of such allowance:

Provided always that, where an officer or clerk of the Ecclesiastical Commissioners or of the said Governors has during the period of three years immediately preceding his retirement mentioned in this section and in section six of the Queen Anne's Bounty (Superannuation) Act, 1870, respectively received an increase of salary or entered the class from which he retired, the superannuation allowance, additional allowance, or gratuity to be granted to him, or his legal personal representatives, shall not, by reason of the said respective sections, be reduced below the amount which might have been granted if he

had continued in receipt of the salary which he was receiving and in the class in which he was serving immediately before the time of such increase or, as the case may be, the time when he entered the class from which he so retires.

6. Subject to the provisions of this Act, the provisions of the Ecclesiastical Commissioners (Superannuation) Act, 1865, and the Queen Anne's Bounty (Superannuation) Act, 1870, with respect to the qualifications for obtaining superannuation allowances and gratuities, and to the manner of reckoning years of service, and amount of annual salary and emoluments, and to the diminution of superannuation allowances, and to the approval by the Treasury of all grants of superannuation allowances, and gratuities, and to the determination of questions by the Treasury, shall apply in respect of additional allowances and gratuities under this Act in like manner as they apply in respect of superannuation allowances and gratuities under those Acts respectively.

Method of
calculating
allowances.

7. On the death of any person to whom any sum not exceeding one hundred pounds is due from the Ecclesiastical Commissioners or the said Governors in respect of any salary, superannuation, or other allowance or gratuity then subject to regulations (if any) to be made by the Ecclesiastical Commissioners and the said Governors respectively, probate or other proof of the title of the personal representatives of the deceased person may be dispensed with, and the said sum may be paid to or distributed among the persons appearing to the Ecclesiastical Commissioners or the said Governors, as the case may be, to be beneficially entitled to the personal estate of the deceased person or to or among any one or more of such persons, and the Ecclesiastical Commissioners or the said Governors shall be discharged from all liability in respect of any such payment or distribution. Any gratuity granted to the legal personal representatives of a deceased officer or clerk under section two or section three of this Act shall, for the purposes of this section, be deemed to be a sum due to such officer or clerk.

Distribution of
money not ex-
ceeding 100l.
without probate.

8. This Act may be cited as the Superannuation (Ecclesiastical Commissioners and Queen Anne's Bounty) Act, 1914, and shall be read as one with the Ecclesiastical Commissioners (Superannuation) Act, 1865, and with the Queen Anne's Bounty (Superannuation) Act, 1870.

Short title and
construction.

